



POLICE DEPARTMENT

January 12, 2026

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-030950
Police Officer Neysa Korycki	:	
Tax Registry No. 960606	:	
79 th Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Laura Chambers, Esq.
Christine Maloney, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Seema Iyer, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Neysa Korycki,¹ while on duty and assigned to the 79th Precinct, on or about February 13, 2024, used excessive physical force, in that, said Police Officer wrongfully struck an individual² known to the Department.

P.G. 221-01, Page 4, Paragraph 2(d)

FORCE GUIDELINES

2. Said Police Officer Neysa Korycki, while on duty and assigned to the 79th Precinct, on or about February 13, 2024, failed to record pertinent information relating to an assignment, and document an arrest where force was used in her Activity Log.

P.G. 212-08, Page 1, Paragraph 1(c)(2)

ACTIVITY LOGS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 10, 2025.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Jonathan Yan as a witness. Respondent called Police Officer Gina Williams-Gordon as a witness and testified in her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Guilty of the charged misconduct. I recommend that she forfeit 13 vacation days.

ANALYSIS

Introduction

The material facts in this case are not in dispute. The summary which follows is based upon a review of body-worn camera video, precinct surveillance video and witness testimony. On February 13, 2024, Respondent was among several police officers from the 79th Precinct who

¹ The Tribunal notes that Respondent's counsel represented that she is in the process of changing her last name back to Gonzalez. She was referred to throughout the trial transcript as Officer Gonzalez at counsel's request. The Tribunal has used "Korycki" here, so as to align with the Department directory

² Hereinafter referred to as "KC."

responded to a 10-85 call for assistance at 551 DeKalb Avenue. Upon their arrival at that location, the police officers ascended an interior stairway until they encountered a woman seated on the steps, with a lump on her forehead. The woman spoke to the police officers in Spanish and pointed in a direction off camera. A few seconds later, a voice is heard stating, "Yeah, I assaulted her," before KC appeared in the frame. KC repeated, "I assaulted her," several times before she appeared to push away Police Officer Vidal. At that point, Vidal placed KC under arrest. Vidal and another police officer turned KC to face the wall in the hallway, and she was placed in handcuffs. Vidal then attempted to lead KC down the staircase, but she refused to walk; Vidal and other police officers lifted KC by her legs and carried her down the stairs to the ground floor. Once they reached the ground floor, the police officers took KC to a police car.

Police Officer Williams-Gordon volunteered to transport KC in her police car because it had a divider between the front and back seats. KC was escorted to Williams-Gordon's vehicle, and she was placed in the rear seat. Williams-Gordon and her partner, Police Officer Miah, then drove KC to the 79th Precinct stationhouse. Upon their arrival at the precinct, Williams-Gordon exited her car and spoke with several other police officers, cautioning them that she suspected KC had slipped out of her handcuffs and might be combative when Williams-Gordon opened the rear right passenger door.

When Police Officer Williams-Gordon opened the door, KC emerged from the rear seat with her hands behind her back, then swung her left hand to strike Williams-Gordon in her face (Dept. Ex. 5, PO Williams-Gordon BWC, at 07:05; Dept. Ex. 8, Respondent BWC, at 01:42-01:45). The group of police officers, including Respondent, began grappling with KC, bringing her to the ground and eventually handcuffing her again. KC was asked again to walk to the precinct and she refused; the police officers then picked her up by her arms and legs and carried

her toward the building. As Williams-Gordon walked past the rear bumper of a car parked in the precinct parking lot, holding KC's left arm and shoulder, Williams-Gordon lost her footing and fell to one knee (Dept. Ex. 2, precinct security camera footage, at 01:49; Dept. Ex. 3, PO Miah BWC, at 7:54). When Williams-Gordon rose to her feet, KC stated, "Yeah, bitch," several times and said, "You can do whatever to me, ni**er" (Dept. Ex. 3 at 07:55-8:04; Dept. Ex. 5 at 07:54-9:17). As the group of police officers continued carrying KC to the precinct, Respondent was standing between Officer Williams-Gordon, who held KC's left arm, and Officer Miah, who held onto KC's left ankle. As KC was brought closer to the building, Respondent swung her hand toward KC's back twice (Dept. Ex. 2 at 01:53-01:54; Dept. Ex. 3 at 07:57). Respondent admitted to striking KC at least once.

At issue in this case is whether Respondent's strikes after KC was handcuffed violated the Patrol Guide and whether Respondent documented this use of force in her daily Activity Log.

Sergeant Jonathan Yan

Sergeant Yan testified that he is currently assigned to the Compliance Division Force Analysis Unit; prior to this assignment, he spent one and one-half years in the Internal Affairs Bureau (IAB), where he investigated excessive force cases and received training on the Department's use of force policies. He testified that he was trained on the various levels of force that are permitted under the Patrol Guide, including the definition of excessive force (T. 14-15).

Sergeant Yan testified that he became familiar with the events of February 13, 2024, and with Respondent's role in those events, when she became the subject of an investigation involving an allegation of hitting a prisoner while she was handcuffed, which is considered excessive force under Department use of force policies. He stated that when evaluating allegations of excessive force, he considers factors such as the circumstances of the arrest, the

number of officers present at the scene, the force used relative to the “position” of the perpetrator, and the size of the officer versus the size of the perpetrator (T. 15-16).

Based on his investigation, Sergeant Yan found sufficient evidence to support charging Respondent with using excessive force against KC while she was handcuffed. To reach this preliminary finding, he considered that KC was being carried by five other police officers; KC’s stature, in relation to the officers; and the fact that she was handcuffed and being carried when she was struck. Sergeant Yan also considered KC’s demeanor, asserting that she was combative from the beginning of the encounter and remained so while being transported in the RMP. He testified, however, that once she was handcuffed, in his view, the “situation seemed pretty much settled,” as five officers were restraining a smaller individual (T. 22-23).

Sergeant Yan testified that Patrol Guide Procedure 221-01 prohibits the use of force against handcuffed individuals, unless it is necessary to prevent injury or escape. He stated that, based on his review of the body-worn camera footage, he saw Respondent deliver one open-hand strike, one closed-fist strike, and then pull KC’s hair while five officers were carrying her toward the precinct entrance. He testified further that Respondent made no entries in her Activity Log regarding her use of force against KC (T. 23-29).

On cross-examination, Sergeant Yan explained that a person who is emotionally disturbed may exhibit unusual physical strength. While he conceded KC was in an aggressive state, he could not categorize her as emotionally disturbed; he did, however, agree that her behavior was consistent with such a condition. He acknowledged that KC actively resisted throughout the interaction and that she had purposely slipped out of her handcuffs (T. 33-35).

Sergeant Yan acquiesced that further body-worn camera footage provides a two-dimensional perspective, which could differ from Respondent’s view as she stood directly next

to KC's left side. While he acknowledged that Respondent asserted during her Department interview that KC had tried to bite Police Officer Williams-Gordon while being carried into the precinct, he still believed the situation was under control because “she was being carried by five officers.” Sergeant Yan pointed out that no other officers used hand strikes as they transported KC into the precinct (T. 38-45).

Police Officer Gina Williams-Gordon

Police Officer Gina Williams-Gordon testified that she is currently an investigator in the domestic violence unit of the 47th Precinct and has been a Member of Service for four and one-half years. On February 13, 2024, she was a patrol officer assigned to the 79th Precinct; her partner that day was Police Officer Miah. They were in uniform and Williams-Gordon was the recorder in their RMP (T. 82-83).

At approximately 1125 hours, Police Officer Williams-Gordon responded to a “10-85” call for assistance at 551 DeKalb Avenue; she testified that she had never been to that location before that day (T. 83). Upon her arrival, she left her RMP, entered the building at that address and immediately heard a female voice yelling and cursing. She looked up a staircase and saw KC being carried down the stairs by police officers; she observed that KC was erratic and “just acting crazy.” Based upon KC’s behavior, Williams-Gordon volunteered to transport her to the 79th Precinct in her RMP, which had a divider between the front and rear compartments (T. 84).

Police Officer Williams-Gordon described KC’s behavior as “possessed,” as she was fighting, cursing and being non-compliant. When Williams-Gordon brought KC to her RMP, KC kicked the door before entering it, then kicked it again once she was inside the RMP (T. 85). She testified further that once she and Police Officer Miah entered the RMP and began driving toward the precinct, KC’s demeanor changed from being “very angry, very aggressive” to “very

quiet” (T. 86). Williams-Gordon testified that she heard a “click” and surmised that KC was attempting to free herself from her handcuffs. She spoke to KC and told her, “don’t try anything,” then removed her body-worn camera and turned it to face the rear passenger compartment to record KC’s actions (T. 86-87). She testified further that she attempted to discretely alert Police Officer Miah to her observations as they drove to the precinct (T. 88).

Police Officer Williams-Gordon testified that when she arrived at the 79th Precinct, she stepped from her RMP and spoke with Respondent and Police Officer Pessoa to share her concern that KC might become violent once the RMP doors were opened (T. 89). She had previously advised Police Officer Miah that they should open both rear doors simultaneously so KC would not know which way to exit, giving them a tactical advantage; while Miah acknowledged the plan, when Williams-Gordon opened the right rear door, Miah did not open the left door (*Id.*). She testified further that KC then exited the RMP and lunged at her; as Williams-Gordon attempted to regain control of KC, she suffered a laceration to her face (T. 90).

Police Officer Williams-Gordon testified that she and other police officers brought KC to the ground and eventually placed the handcuffs back on both of her wrists; once she was restrained, however, she refused to walk into the precinct. She testified further that KC actively resisted having handcuffs placed on her. As KC resisted arrest, she was also cursing and fighting. Williams-Gordon asked KC to stand up and she refused, resulting in the police officers carrying her bodily into the precinct (T. 91).

Police Officer Williams-Gordon testified that she was holding KC’s arm and Respondent was immediately behind her as they carried KC; while walking toward the precinct, Williams-Gordon slipped on ice in the parking lot due to KC wriggling her body and bumping into her. She then stood up and continued to carry KC into the precinct, placing her in front of the desk

officer. At no point during the transit from the parking lot to the inside of the precinct did she look behind her to observe Respondent (T. 93-94). She testified further that KC continued to struggle against the police officers and never relaxed (T. 96).

Police Officer Williams-Gordon testified that once inside the precinct, two ambulances were requested: one for KC and one for her. She refused the ambulance and received treatment at the precinct, but did not go out on a line-of-duty injury (T. 95).

Respondent

Respondent testified that on February 13, 2024, she was performing uniformed patrol duties with her partner, Police Officer Pessoa, in a marked vehicle. She testified that at approximately 1120 hours, she responded to an assault in progress at 551 DeKalb Avenue, a location with which she was familiar, having responded anywhere from “six to ten” times in the past on calls which were “mostly for EDPs,” including KC. Respondent testified that all her previous interactions with KC had been positive. Upon her arrival, Respondent observed a home attendant sitting on the staircase crying with a massive lump on her head. She recalled that KC was screaming and yelling at officers who had responded to the location before she and her partner arrived (T. 50-51).

Respondent testified that she observed KC in a “highly irate and hostile and aggressive manner.” She explained that KC was “actively resisting” while already in handcuffs, attempting to bite officers and “was spitting,” to the point that officers had to take her down to the ground to gain compliance. She further testified that Police Officer Vidal, and another officer, had to carry KC by her legs and upper body because she was unwilling to walk on her own. Respondent recalled that once KC was brought to street level, the officers outside had to determine who had a “cage vehicle” for KC, due to her combativeness. She explained that a “cage vehicle” is used in

situations “where the perpetrator is aggressive, hostile, to prevent possible kicking or any sort of assault.” Before KC was placed in the vehicle with the cage, Respondent recalled speaking to her in Spanish, specifically telling her to “relax” and “calm down,” to which KC screamed, “don’t talk to me” (T. 53-54).

After KC was placed in the vehicle, Respondent and her partner followed in the event the arresting officers required additional assistance with the arrest. Respondent testified that when they arrived at the precinct and entered the parking lot, Police Officer Williams-Gordon advised her that KC may have “slipped the cuffs,” and the officers decided to “stagger up” tactically, to prevent an assault or escape. Respondent explained that she interpreted Williams-Gordon’s warning to mean that KC was not properly handcuffed, which posed a safety hazard (T. 55-56).

She recalled that as soon as KC was let out of the vehicle, she “punched” Police Officer Williams-Gordon “in the face.” Respondent testified that all the officers then performed a “forceful takedown,” as KC tensed up to prevent being cuffed (T. 57). She explained that she “utilized two strikes to [KC’s] body to gain compliance” (T. 58). The police officers eventually placed KC in rear handcuffs, but she refused to walk on her own and had to be carried. Respondent explained that KC was yanking her arms and “flailing around.” She testified that as KC was being carried inside, KC used her shoulder to jostle Williams-Gordon, causing her to slip and fall to the ground, and explained that KC was still attempting to slip the cuffs. Respondent offered that although several officers were carrying KC, it was reasonable that KC still could have escaped, as she manifested unusual strength in relation to her diminutive stature (T. 58-61). Respondent testified that she understood the Patrol Guide to permit the use of “necessary force ...to gain compliance for actively and aggressively resisting perpetrators *whether they’re handcuffed or not*” (emphasis added)(T. 58).

Respondent testified that at this point she “did strike KC two times.” She explained that only one strike made contact and that she pulled KC’s hair, not only for officer safety, as KC was attempting to bite officers, but also to prevent KC from hurting herself. She explained that she struck KC using only the fleshy side of her hand, stating there were “no knuckles to body,” and that she used reasonable force to gain compliance. She further detailed that she grabbed KC’s head by her hair to gain control of her body movements, explaining that they were approaching the door and that if KC continued her actions, “one of us could have been knocked into the door.” Respondent testified that once inside, KC was placed on the ground and leg shackles were placed on her feet, but she continued yelling profanities. She testified that this marked the end of her contact with KC (T. 62-68).

On cross-examination, Respondent conceded that she did not observe any other police officer utilize hand strikes against KC and that she was not told by any fellow officer that KC was attempting to escape (T. 70). On re-direct examination, Respondent explained that she did not observe other officers striking KC, as she was facing forward as they approached the entrance to the precinct. She testified that because KC was aggressive and combative, she did not have time to converse with other officers and did not have time for reflection (T. 71-73).

In response to questions from the Tribunal, Respondent testified that KC’s behavior on February 13, 2024, was inconsistent with her prior experiences with KC, which had typically been positive. She further testified that KC is approximately 100 pounds and around 5’2”, whereas Respondent stands at approximately 5’3.” Respondent explained that at the time of the incident, it was actively snowing, with sleet and ice on the ground, and that after Police Officer Williams-Gordon lost her footing, she observed KC turn her head in a manner consistent with an attempt to bite Williams-Gordon (T. 73–79).

Video Evidence***Respondent's Exhibit A: PO Joel Vidal BWC***

- 0:00-01:40** POs Vidal and Pena arrive on scene and exit a marked RMP. They enter an apartment building and walk up a flight of stairs to find the female caller sitting at the top of the stairs and leaning against the wall.
- 01:41-03:06** PO Vidal asks her, "What happened?" The woman states in Spanish, "She attacked me." KC announces off-screen, "I hit her. Yes, I did. I assaulted her." Vidal turns to face KC. KC reiterates that she assaulted the woman. She then pushes Vidal, and he grabs her, placing her in handcuffs with PO Pena's help. As they place her in handcuffs, Vidal repeats, "Wrong move," and KC repeats, "I don't give a f—k."
- 03:07-05:30** Additional police officers step in to assist POs Vidal and Pena in handcuffing KC. KC flails and kicks, falling to the ground. The officers pick her up, escort her out of the building, and place her in the RMP as she kicks Vidal.
- 05:31-07:30** PO Vidal walks toward the ambulance where the female caller is being treated. In Spanish, he asks her, "What happened?" She replied that she came to clean KC's mother's apartment, and as she was cleaning, KC attacked and berated her without provocation.
- 07:31-13:22** PO Vidal relays what the female caller told him to his supervisor and indicates that she has a knot on her head and a possible broken finger. He further discloses that KC pushed and spat on him and she should also be charged with resisting. Vidal then asks for the woman's age, and she states she is 45. He tells his supervisor that he thinks he has dealt with KC before.
- 13:23-16:21** PO Vidal asks the EMT if the woman's finger is broken. The EMT indicates that her finger is not broken but bruised and possibly sprained. He then asks what hospital the woman will be taken to and provides her with his phone number. Vidal apologizes to the woman for her experience with KC. The EMT posits that KC is mentally ill, and Vidal concurs, reiterating that he thinks he has dealt with her before. He tells them he will most likely meet them at the hospital before concluding the interaction and returning to his RMP.

Department's Exhibit 3: PO Jinnat Miah BWC

- 01:00-03:09** PO Miah and PO Williams-Gordon arrive on scene responding to an assault. The victim is escorted down the steps, and KC soon follows, being carried out by officers. Before KC is placed in an RMP, Williams-Gordon states, "we got a cage," referring to the RMP she and Miah drove, which has a cage-like partition. KC shouts and yells at officers while Miah goes to retrieve the RMP.

- 03:10–05:05** KC is placed in the back of the RMP as she verbally assaults officers. PO Miah, the operator of the RMP, gets into the driver's seat while PO Williams-Gordon takes the passenger seat. KC continues verbally assaulting officers, repeatedly asking for her misplaced shoe as Williams-Gordon radios in the arrest. Miah responds, "you'll get your shoe." Miah then drives to the precinct.
- 05:06–06:17** PO Williams-Gordon turns toward the back seat and warns KC, repeating, "Ma'am, don't try to do anything. I'm taking you back to the precinct. Don't make things any worse. Go back there, say what you 'gotta say. Whatever it is that you're trying to do, don't do it. Ok. You understand. Don't do it and don't try to remove the handcuffs either." They continue to the precinct, and Williams-Gordon states, "it's not worth it. You're probably upset and you're probably high up there but I'm telling you, it's not worth it."
- 06:18–07:09** POs Williams-Gordon and Miah arrive at the precinct and exit the RMP. PO Miah moves to the trunk to retrieve gloves. Respondent and her partner, who pull in behind Miah, are seen putting on gloves and standing near the rear passenger door. All four officers prepare to open the door to escort KC into the precinct. Miah opens the trunk, retrieves gloves, returns to the driver's side, and puts something back. Several officers, including Miah, rush in the direction of KC as she actively resists being escorted into the precinct.
- 07:10–07:34** Police officers wrestle with KC, taking her down to the snowy ground. Respondent is seen punching KC, and PO Williams-Gordon is heard saying, "I told you don't try it! Don't try it!" KC is flat on her back as Williams-Gordon attempts to gain control of her arms, repeatedly telling her, "Now turn around." The police officers continue wrestling with KC before she is eventually handcuffed.
- 07:35–07:45** Several police officers are on their knees surrounding KC, who is now lying on her stomach with her hands cuffed behind her back. At the same time, Respondent punches KC twice in the back and forcefully presses her hands into KC's back as police officers lift KC from the ground.
- 07:46–08:00** As she is placed on her feet, KC uses her legs to resist, and officers scurry to get her under control. Police officers carry KC by her arms and legs, which are crossed above the ankles, and make their way toward the precinct door. On the way into the precinct, KC is heard cursing and taunting officers. Respondent is then seen hitting KC twice and making a striking motion a third time, a few steps before entering the precinct.

Department's Exhibit 5: PO Gina Williams-Gordon BWC

- 01:00–03:05** PO Williams-Gordon arrives on scene responding to an assault. The victim and several officers are seen walking down a flight of stairs, followed by KC, who is being carried by her arms and legs. The police officers make their way onto the

sidewalk where several RMPs are parked. KC continuously shouts angrily at the officers, “stop talking to me,” as Williams-Gordon repeatedly announces, “We got a cage,” referring to the RMP with the gate-like partition. KC, wearing one boot with her arms cuffed behind her back, shouts at officers to get her shoe as she is escorted to the RMP with the cage.

- 03:06–06:23** KC is placed in the back of the RMP and uses her body to shove the door open as officers attempt to close it. PO Williams-Gordon ensures the door is locked before getting into the passenger seat of the RMP. Williams-Gordon calls in the arrest as KC continuously yells from the back seat, taunting officers and complaining about her missing shoe. Williams-Gordon warns KC several times not to do anything that would make the situation worse for herself, specifically warning her not to try to remove the cuffs. Williams-Gordon turns her body-worn camera toward KC, who does not respond to the warnings and looks past Williams-Gordon, seemingly ignoring her.
- 06:24–07:05** POs Miah and Williams-Gordon pull into the precinct parking lot, with Respondent and her partner pulling in behind them. Before removing KC from the car, Williams-Gordon warns, “wait a second. I think she’s trying to remove the cuffs.” Before opening the door, officers confirm that they are ready. KC pauses briefly, scoots out of the car, and, with the cuff only on her right wrist, attacks Williams-Gordon by swinging her arms toward her face.
- 07:06–08:00** The police officers struggle with KC, who is actively resisting, but eventually get her to the ground. PO Williams-Gordon is heard yelling at KC, demanding that she turn around and comply with being cuffed. Police officers pull on KC’s shirt and arms to get her into cuffs. KC is eventually placed on her stomach, with officers working to secure both arms behind her back. Once both arms are cuffed, Respondent punches KC twice. The view becomes obscured, and KC then stood up on her feet. KC begins resisting again, and the police officers lift her off her feet and carry her toward the precinct. Respondent briefly carries KC with her hair. KC taunts the officers, and a hand is seen pushing KC in the back of the head as they make their way into the precinct.

Department’s Exhibit 8: Respondent’s BWC

- 01:00–01:29** Respondent drives the RMP into the precinct parking lot and parks directly behind PO Miah and PO Williams-Gordon’s RMP. She and her partner walk to the rear passenger door of the RMP carrying KC and prepare to assist with escorting her from the vehicle by putting on gloves. Williams-Gordon informs officers that KC may have attempted to remove the cuffs. All officers confirm they are ready before opening the door.
- 01:30–01:59** As the door opens, KC has both hands behind her back as she scoots out of the car, then lifts both hands and attacks PO Williams-Gordon’s face, revealing that she has removed the cuff from her left arm. Officers grab her arms and struggle

with her until she is brought to the ground. The video becomes momentarily blurred due to fast movement and close proximity. Williams-Gordon is heard yelling at KC and issuing commands for her to turn over.

02:00–02:50 All officers are seen pulling on KC's arms to gain compliance. A jerking movement and pounding sound are observed as PO Williams-Gordon continues ordering KC to comply. Respondent's camera falls to the ground, changing the view to below Respondent, looking upward. Several officers surround KC as she lies on the ground. Respondent assists with gaining compliance as officers place rear cuffs on KC. Respondent punches KC twice in the back and pushes down on KC as officers lift her and stand her on her feet. An officer retrieves the body-worn camera, obstructing the view. KC's voice is heard shouting at officers as they escort her into the precinct.

Department's Exhibit 2: 79th Precinct Surveillance Video

- 00:08–01:40** Two RMPs enter the precinct parking lot and double park, one behind the other, perpendicular to the allocated parking spaces. Respondent and her partner are the first to exit the second RMP, followed by PO Miah driving the first RMP, which is carrying KC. All officers move toward the rear passenger door where KC is held and are out of view, except for Miah, who is seen opening the trunk and retrieving gloves. He then makes his way from the rear passenger area back to the driver's side door. A third RMP pulls in as all officers run toward the rear passenger door and move out of view.
- 01:41–01:48** Five officers emerge from the rear of the RMP carrying KC by her arms and legs, which are crisscrossed at the ankles. KC is face-down and rear-cuffed as officers escort her toward the precinct. A sixth officer emerges from the front of the RMP to assist, leading the way to open the door for the officers. PO Williams-Gordon slips on the snow and lands on her left knee while still holding onto KC with her right hand.
- 01:49–02:00** PO Williams-Gordon uses the rear of a parked car to regain her footing. Respondent, who is standing directly behind her and holding KC with both hands, uses her right hand to slap KC in the back of the head once, closed-fist punch KC in the back of the head, and then mashes her head down from behind as officers continue walking and carrying KC into the precinct.

Credibility

I credit Sergeant Yan's testimony as credible and consistent with his role as an investigator. He had no personal knowledge of the events of February 13, 2024, but collected

relevant evidence during his investigation which formed the bulk of the Department Advocate's case.

I further credit Police Officer Williams-Gordon's testimony as forthright and candid. Her testimony was corroborated by her body-worn camera recording, the body-worn camera recordings of Police Officer Miah and Respondent, and the 79th Precinct surveillance video recordings.

Finally, I credit Respondent's testimony, even though, as discussed below, I have made adverse findings of guilt regarding her actions on the date in question. I observed her demeanor as she testified before the Tribunal and found her to be sincere, albeit laboring under a misapprehension of Department policy regarding the use of force against handcuffed prisoners; while her defense to the charges was unpersuasive, I do not find that she attempted to mislead the Tribunal.

Specification 1: Use of Force

I find that the Department Advocate has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent unlawfully used force against an individual known to the Department on February 13, 2024, by striking her with her hand after she was handcuffed.

Patrol Guide procedure 221-01(2)(d) prohibits the use of "any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape or to overcome active physical resistance or assault" (P.G. 221-01[2][d]).

Department's Exhibit 2 shows Respondent striking at KC twice as she is being carried into the 79th Precinct from the parking lot (Dept. Ex. 2 at 01:53-01:54; Dept. Ex. 3 at 07:57). In her trial testimony, Respondent conceded that she struck at KC twice and admitted that she made

contact with KC once. The issue before this Tribunal is whether those strikes were necessary to prevent injury, escape or to overcome active physical resistance or assault. Based upon the totality of the evidence, I find that they were not.

Based upon Respondent's testimony, she was aware, prior to February 13, 2024, that KC was a person with unspecified psychological issues. Even if she had not been so aware, a reasonable police officer could have deduced that from the behavior KC exhibited on February 13, 2024: the physical aggression against a caregiver and her unsolicited admission to Police Officer Vidal that she had indeed struck her; KC's repeated incantations and use of profanity; her violent assault on Police Officer Williams-Gordon while five other police officers were within arm's reach; her attempt to bite Police Officer Williams-Gordon while she was carried bodily into the precinct while restrained hand and foot; and her taunting of the police officers. Police Officer Williams-Gordon, who had never encountered KC before February 13, 2024, described her behavior as "acting crazy" and "possessed."

Under these circumstances, it should have been readily apparent to Respondent that KC was not in a rational state of mind and that her duty was to care for KC as a person in need of psychiatric help. While Respondent argued that her actions fell into one of the few exceptions to the strict prohibition against striking a handcuffed prisoner, the record does not support her claim that force was necessary, as required by the Patrol Guide. The most logical step Respondent could have taken, which she eventually did, was to hold KC's hair to immobilize her head from moving into a position to bite Police Officer Williams-Gordon, or any other police officer.

Based upon the foregoing, I find Respondent Guilty of Specification 1.

Specification 2: Activity Log

I find that the Department Advocate has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent failed to document her use of force against an individual known to the Department on February 13, 2024, in her Daily Activity Log.

The Department did not present any evidence of: (1) Respondent's Daily Activity log for February 13, 2024; (2) what Patrol Guide procedures 212-08 and 221-02(16) and 221-02(21) require when an MOS uses force; (3) to what extent Respondent's documentation of the use of force was either deficient or absent; and (4) any admissions Respondent may have made during her official Department interview to her failure to document her use of force on February 13, 2024.

Sergeant Yan testified on direct examination that he reviewed Respondent's activity log for February 13, 2024, and there was no documentation of the force used against KC (T. 29). Counsel for Respondent did not cross-examine Yan on this assertion and did not argue during summation that the Department's proof was deficient. Accordingly, Respondent has conceded this factual point.

Based upon the foregoing, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined (*See* 38 RCNY § 15-07). Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 6, 2016, was found Guilty of using excessive physical force and failing to document the use of that force in her Activity Log.

Respondent has no formal disciplinary history. I have also reviewed Respondent's post-trial submission of awards and recognitions from her personnel file.

The Department Advocate has recommended that Respondent forfeit a total of 13 penalty days to cover the two specifications. Under the totality of the circumstances presented here, that penalty is reasonable and appropriate. The presumptive penalty for the use of non-deadly force, resulting in no injury, is ten (10) penalty days (*Matrix*, p. 23). As a starting point, that presumptive penalty is appropriate here. Additionally, where an individual is handcuffed at the time the force is used, the Matrix lists that as a potentially aggravating factor. (*Matrix*, p. 25) Since KC was in handcuffs when the force was used, an additional forfeiture of three vacation days is warranted, bringing the total penalty for the use of force charge to thirteen (13) vacation days. Further, an officer's failure to record pertinent information in an Activity Log is classified as a Schedule "A" Command Discipline offense, carrying a penalty of up to five days. (*Matrix*, p. 53) For this offense, I recommend that Respondent forfeit two (2) vacation days, to run concurrently with the penalty for the force charge, bringing the total penalty to thirteen (13) vacation days.

Accordingly, I recommend that Respondent forfeit a total of thirteen (13) vacation days to cover the two charges.

APPROVED

APR 08-2026
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER NEYSA KORYCKI
TAX REGISTRY NO. 960606
DISCIPLINARY CASE NO. C-030950

Respondent was appointed to the Department on January 6, 2016. On her three most recent annual performance evaluations, she received ratings of “Exceptional” for 2022 and 2024, and was rated “Exceeds Expectations” for 2023. She has been awarded four (4) medals for Meritorious Police Duty and four (4) medals for Excellent Police Duty.

Respondent has no formal disciplinary history. In connection with the instant matter, Respondent was placed on Level 1 Discipline Monitoring in April 2024; monitoring remains ongoing.

For your consideration.

Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials